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Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

LAIDON GROUP

LLC,

vs.

ITA DATA

GROUP, LLC.

Case No.: 26STCP01952

Hearing

Date: August 17, 2026

Petitioner Laidon Group LLC's unopposed motion to seal portions of its Petition to Vacate Arbitration Award filed on May 22, 2026, and the entirety of Exhibits 1-16 of its Petition to Vacate Arbitration Award filed on May 22, 2026, is granted.

Respondent ITA Data Group, LLC's unopposed motion to seal Exhibits

A and B of the Petition to Confirm Arbitration Award filed on June 23, 2026, is granted.

Petitioner Laidon Group LLC ("Laidon") ("Petitioner") moves unopposed for an order sealing (1) its Petition to Vacate Arbitration Award, or in the Alternative, Modify Award filed on May 22, 2026 ("Petition to Vacate"); and (2) Exhibits 1-16 to its Petition to Vacate. (Notice Motion Seal Vacate, pgs. 1-2; CRC, Rules 2.550, 2.551.)

Respondent ITA Data

Group, LLC ("ITA") ("Respondent") moves unopposed for an order sealing Exhibits A and B to its Petition to Confirm Arbitration Award filed on June 23, 2026. (Notice Motion Seal Confirm, pg. 1.)

Legal Standard

CRC Rule 2.551(a) provides, as follows: "A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties."

CRC Rule 2.551(b)(1) provides, as follows: "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing."

CRC Rule 2.550(d) provides, as follows: "The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest."

CRC Rule 2.550(e) provides: "An order sealing the record must:

(A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably

practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.”

California

courts ordinarily grant requests to seal information “involv[ing] confidential matters relating to . . . business operations,” particularly where “public revelation of these matters would interfere with its ability to effectively compete in the marketplace.” (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1286; see also Huff Corp. v. Superior Court (2003) 112 Cal.App.4th 97, 108 “[D]ocuments which are not trade secrets may nonetheless be subject to sealing in the face of a proper . . . showing of prejudice to an overriding interest.”), citation omitted.)

1. Petitioner’s Motion to Seal Petition to Vacate

Petitioner moves to seal (1) its Petition to Vacate Arbitration Award, or in the Alternative, Modify Award filed on May 22, 2026 (“Petition to Vacate”); and (2) Exhibits 1-16 to its Petition to Vacate (“Exhibits 1-16”). Petitioner moves to seal portions of the Petition to Vacate on grounds that four non-party customers’ names are included in the Petition to Vacate, and specific pricing and commission figures are also included in the text. (Motion Seal Vacate, pg. 4.) Petitioner moves to seal Exhibits 1-16 on the grounds that the Award includes a schedule of the specific commission rates and software license pricing figures used in calculating the \$4,044,019.73 damages award, and that schedule reproduces confidential pricing and commission data. (Motion Seal Vacate, pgs. 4-6.)

A. Petition to Vacate

First, contractual confidentiality obligations established before litigation are cognizable overriding interests because they confirm the sensitivity of the information was genuine and predated the dispute. (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1280.) Second, trade secrets and confidential pricing and commission structures are protectable commercial information. (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894; Civ. Code §3426.1(d).) Third, the privacy interests of non-parties who did not choose to litigate and whose private business dealings are swept into litigation without their consent constitute a recognized overriding interest. (In re Provident Credit Card Cases (2002) 96 Cal.App.4th 292, 301 [privacy of non-parties a recognized sealing

ground]; Mercury Interactive Corp. v. Klein (2007) 158 Cal.App.4th 60, 106 [non-party privacy interests weigh in sealing analysis].)

Here, there exists an overriding interest in the privacy of the four non-party customers. Each of these companies entered into a private commercial transaction with Petitioner and did not choose to litigate or have an opportunity to object to being named in a public proceeding. Publicly naming the four non-party customers in the judicial record permanently ties their identities to contested commission claims they had no part in generating.

There also exists an overriding interest in the contractual confidentiality obligation under Section 6 of the Reseller Agreement. The pricing and commission figures appearing inline in the Petition's text identify specific rates applicable to specific customer transactions and qualify as Confidential Information under that provision.

A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed. Customer A is a European company whose transaction with Petitioner involved specific contract terms and pricing that are not publicly known. Publicly identifying Customer A by name, combined with the specific commission and pricing data in the Petition's text, would disclose to Customer A's competitors the commercial terms of a private software license transaction that neither party ever agreed to publicize. It would also disclose those terms to Petitioner's competitors. Customers B, C, and D face the same exposure. Their names, paired with the deal-specific information in the Petition, would allow any competitor to identify the commercial terms of their private SimpleMDG agreements.

Beyond competitive harm, there is relational prejudice. These companies transacted with Petitioner in reliance on the confidentiality of their commercial arrangements. Public disclosure through litigation they did not choose could damage their relationship with Petitioner and expose them to inquiries from their own competitors, customers, and business partners about the specifics of their enterprise software arrangements.

The redactions sought are narrowly tailored. Customer names in the public Petition are replaced with neutral identifiers, Customer A, Customer B, Customer C, and Customer S allowing the Court and any reader to follow the entire legal

argument without knowing the actual company names. Inline pricing and commission figures are replaced with "[REDACTED]." The overriding interest maps precisely onto the information that is redacted, and only that information.

Finally, no less restrictive means exist. Petitioner provides all of the text of the petition that does not disclose the customer names and specific pricing information, while still providing the public with access to the remainder of the filing.

Accordingly, Petitioner's motion to seal portions of the Petition to Vacate on grounds that four non-party customers' names are included in the Petition to Vacate, and specific pricing and commission figures are also included the text is granted.

B. Exhibits 1-16

Here, there exists an overriding interest in the contractual confidentiality obligation under Section 6 of the Reseller Agreement combined with the independent trade secret character of the pricing schedule itself. Petitioner's commission tier structures and software pricing architecture have independent economic value precisely because they are not generally known to competitors in the SAP master data governance market. The specific commission rates, tiered by lead origin and product version, reflect years of commercial experience and careful market positioning. Competitors who obtained these rates could target Petitioner's reseller network, undercut its pricing, or replicate its commission structure without absorbing the development costs Petitioner incurred. (Civ. Code §3426.1(d); *Yield Dynamics, Inc. v. TEA Systems Corp.* (2007) 154 Cal.App.4th 547, 563.)

A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed.

Petitioner operates in a competitive commercial market. Its commission tier structures, specifically the differentiated rates for ITA-originated leads, SAP Store leads, and Laidon-generated leads that the Arbitrator applied in calculating damages, represent Laidon's proprietary approach to reseller incentivization. Any competitor reviewing Exhibits 1-16 would walk away with a precise, verified snapshot of Petitioner's commercial pricing architecture.

The redactions sought are narrowly tailored. Exhibits 1-16 generally contain commission and pricing schedule, and their entire content is confidential information. The documents do not mix public and private information that can be separated through targeted redaction. Every number, every rate, every tier on that page is the confidential commercial information the Confidentiality Provision covers. Redacted Exhibits 1-16 are blank pages. Sealing the exhibits in their entirety while filing all other materials publicly is therefore both the least restrictive means available and the only means that actually achieves the overriding interest.

Accordingly, Petitioner's motion to seal Exhibits 1-16 of the Petition to Vacate is granted.

Conclusion

Petitioner's unopposed motion to seal is granted.

Moving Party to give notice.

2. Respondent's Motion to Seal Petition to Confirm

Respondent moves to seal Exhibits A and B to its Petition to Confirm Arbitration Award ("Petition to Confirm") on grounds that Petitioner has claimed that the documents contain its confidential information and has previously sought in this action to file the same documents under seal, namely, Exhibits 1 and 2. (Motion Seal Confirm, pgs. 3-5.)

The Court grants Respondent's motion for the same reasons stated with regard to Exhibits 1 and 2 of Petitioner's motion.

Accordingly, Respondent's motion to seal Exhibits A and B of the Petition to Confirm is granted.

Conclusion

Respondent's unopposed motion to seal is granted.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court